

In the Supreme Court of Bangladesh
High Court Division
(Criminal Miscellaneous Jurisdiction)

Criminal Misc. Case No.48956 of 2023

In the matter of:

An application under section 498 of the Code of Criminal Procedure.

-And-

In the matter of:

Pear Mohammad @ Pearo

.... Accused-Petitioner

-Versus-

The State

.... Opposite Party

Mr. Mohammad Imran, Advocate

.... For the accused-Petitioner.

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

The 6th February 2024

This is an application under Section 498 of the Code of Criminal Procedure for bail.

In this case under Sections under table 10(Ga) of Section 36(1) of the Madak Drabbya Niyontron Ain, 2018 70,000 pieces

of Yaba tablets were recovered from the possession of the petitioner.

In view of above materials on record we are not inclined to grant bail to the petitioner at this point of time but we feel it necessary to pass a direction upon the Trial Court below for conclusion of the trial of the case expeditiously.

Accordingly, we are directing the learned Additional Session Judge, 3rd Court, Cox's Bazar to conclude the trial of the case within 6(six) months from the date of receipt of this order without allowing any adjournment beyond 15(fifteen) days.

But if he fails to conclude the trial within above period he will have to explain in writing to this Court through the Registrar General, Supreme Court of Bangladesh as to why the trial could not be concluded and he shall also consider the petition for bail if any filed by the petitioners with sympathy and in accordance with law.

The Superintendent of Police, Cox's Bazar is directed to ensure that prosecution witnesses are produced before the

Trial Court on the date to be fixed by the Court without any fail.

Let copies of this order be sent to the learned Additional Sessions Judge, 3rd Court, Cox's Bazar and Superintendent of Police, Cox's Bazar at once.

With above direction this application is disposed of.

Let a copy of this order be transmitted to the Court concerned at once.

MD. MASUDUR RAHMAN
BENCH OFFICER